

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 07/01/26.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Ron Miller Enterprises Inc. v. Alex Delamora**
Superior Court Case No. 23CECG00856

Hearing Date: July 2, 2026 (Dept. 501)

Motion: Plaintiff's Petition to Exceed Fee Schedule

Tentative Ruling:

To continue the matter to Thursday, August 13, 2026 at 3:30 p.m. in Department 501. Counsel is to file a supplemental declaration regarding billing no later than July 30, 2026.

Explanation:

The court has reviewed plaintiff's petition consistent with Fresno Superior Court Local Rules Appendix A1, subdivision (A)(3). Plaintiff's counsel has demonstrated that counsel's efforts and time in this matter warrants an award exceeding the fee schedule. However, the billing records include billing entries for another matter. Additionally, the court is not inclined to include the five percent to cover operating overhead. The matter is continued for counsel to provide a supplemental declaration demonstrating hours worked solely in this matter. Counsel is also encouraged to file an amended proposed default judgment with the reduced attorney's fees requested.

The court would note that there is a pending request for court judgment. In this petition, plaintiff also requests the court grant the pending default judgment. However, the court notes that the judgment is sought as to Alex and Elena Delamora. Defendant BBC Investment Group dba Champion Motorz has neither been defaulted nor dismissed. The Doe Defendants have also not been dismissed. Counsel is encouraged to address this when filing the supplemental declaration.

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